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U.S. District Court - District of Colorado
District of Colorado (Denver)
CIVIL DOCKET FOR CASE #: 1:11-cv-00303-RBJ-MEH

St. Paul Sober Living, LLC et al v. Garfield County, Board of
County Commissioners

Assigned to: Judge R. Brooke Jackson

Referred to: Magistrate Judge Michael E. Hegarty

Case in other court: USCA, 13-01269

USCA, 13-01441

Cause: 42:3601 Fair Housing Act

Date Filed: 02/04/2011

Date Terminated: 12/28/2012

Jury Demand: Defendant

Nature of Suit: 443 Civil Rights:

Accommodations

Jurisdiction: Federal Question

Plaintiff

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Plaintiff

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Plaintiff

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Plaintiff

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Plaintiff

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V.

Defendant

Garfield County, Board of County Commissioners

(actually named as Board of County Commissioners, Garfield County, State of Colorado) a political subdivision of the State of Colorado

represented by **J. Craig Smith**

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Defendant

Spring Valley Sanitation District
a Colorado metropolitan district
TERMINATED: 07/16/2012

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Date Filed	#	Docket Text
02/04/2011	<u>1</u>	COMPLAINT against Garfield County, Board of County Commissioners (Filing fee \$ 350, Receipt Number 35014) Summons Issued, filed by St. Paul Sober Living, LLC, Chris Edrington, Adam Tipton, Alex Colins, and Donald Edrington. (Attachments: # <u>1</u> Civil Cover Sheet, # <u>2</u> Receipt)(lyg,) (Entered: 02/07/2011)
02/08/2011	<u>2</u>	ORDER REFERRING CASE to Magistrate Judge Michael E. Hegarty by Judge Philip A. Brimmer on 2/8/11. (pabcd) (Entered: 02/08/2011)
02/09/2011	<u>3</u>	MINUTE ORDER Scheduling Conference set for 4/26/2011 at 9:30 AM in Courtroom A 501 before Magistrate Judge Michael E. Hegarty, by Magistrate Judge Michael E. Hegarty on 2/9/2011. (mehcd) (Entered: 02/09/2011)
02/11/2011	<u>4</u>	SUMMONS Returned Executed by All Plaintiffs. Garfield County, Board of County Commissioners served on 2/10/2011, answer due 3/3/2011. (Cormier, Michelle) (Entered: 02/11/2011)
02/14/2011	<u>5</u>	NOTICE of Entry of Appearance by Steven Gary Polin on behalf of Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton (Polin, Steven) (Entered: 02/14/2011)
03/03/2011	<u>6</u>	STRICKEN - MOTION to Dismiss for Lack of Jurisdiction by Defendant Garfield County, Board of County Commissioners. (Attachments: # <u>1</u> Proposed Order (PDF

		Only))(Coleman, Cassandra) Modified on 3/7/2011 to strike document pursuant to minute order entered 3/4/11 (mnf,). (Entered: 03/03/2011)
03/04/2011	7	MINUTE ORDER STRIKING 6 Motion to Dismiss for Lack of Jurisdiction, for failure to comply with D.C.COLO.LCivR 10.1.E ("All papers shall be double-spaced.") Defendant may file a complying pleading by 5:00 p.m. on Monday, March 7, 2011. By Judge Philip A. Brimmer on 3/4/11.TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (pabsec) (Entered: 03/04/2011)
03/04/2011	8	NOTICE OF CASE ASSOCIATION by Defendant Garfield County, Board of County Commissioners (Coleman, Cassandra) (Entered: 03/04/2011)
03/04/2011	9	MOTION to Dismiss for Lack of Jurisdiction by Defendant Garfield County, Board of County Commissioners. (Attachments: # 1 Proposed Order (PDF Only))(Coleman, Cassandra) (Entered: 03/04/2011)
03/11/2011	10	MOTION to Stay <i>Unopposed Motion to Hold Case in Abeyance</i> by Defendant Garfield County, Board of County Commissioners. (Attachments: # 1 Proposed Order (PDF Only))(Coleman, Cassandra) (Entered: 03/11/2011)
03/11/2011	11	MEMORANDUM regarding 10 MOTION to Stay <i>Unopposed Motion to Hold Case in Abeyance</i> filed by Garfield County, Board of County Commissioners. Motion referred to Magistrate Judge Michael E. Hegarty by Judge Philip A. Brimmer on 3/11/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(pabsec) (Entered: 03/11/2011)
03/15/2011	12	MINUTE ORDER granting in part and denying in part 10 Defendant's Unopposed Motion to Hold Case in Abeyance. The Scheduling Conference set for 4/26/2011 is vacated. Status Conference set for 6/1/2011 09:30 AM in Courtroom A 501 before Magistrate Judge Michael E. Hegarty. All proceedings other than the pending motion to dismiss are stayed. By Magistrate Judge Michael E. Hegarty on 3/15/2011. (mehcd,) (Entered: 03/15/2011)
03/31/2011	13	MOTION for Extension of Time to File Response/Reply as to 9 MOTION to Dismiss for Lack of Jurisdiction by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Proposed Order (PDF Only)) (Polin, Steven) (Entered: 03/31/2011)
03/31/2011	14	MINUTE ORDER granting 13 Motion to File Response to Motion to Dismiss Out of Time. Plaintiffs are granted leave to file a response to defendant's motion to dismiss 9 no later than April 4, 2011. By Judge Philip A. Brimmer on 3/31/11.TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (pabsec) (Entered: 03/31/2011)
04/04/2011	15	BRIEF in Opposition to 9 MOTION to Dismiss for Lack of Jurisdiction filed by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Proposed Order (PDF Only))(Polin, Steven) (Entered: 04/04/2011)
04/18/2011	16	REPLY to Response to 9 MOTION to Dismiss for Lack of Jurisdiction filed by Defendant Garfield County, Board of County Commissioners. (Coleman, Cassandra) (Entered: 04/18/2011)
06/01/2011	17	COURTROOM MINUTES/MINUTE ORDER for proceedings held before Magistrate Judge Michael E. Hegarty: Telephonic Status Conference held on 6/1/2011. Scheduling Conference set for 8/11/2011 at 9:15 AM in Courtroom A 501 before Magistrate Judge Michael E. Hegarty. (FTR: C. Coomes -- Courtroom A-501) (mehcd) (Entered: 06/01/2011)
06/10/2011	18	Unopposed MOTION for Leave to file amended 1 complaint by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton.

		(Attachments: # 1 Proposed Document Proposed First Amended Complaint)(Cormier, Michelle) Modified on 6/13/2011 to add linkage (mnf,). (Entered: 06/10/2011)
06/13/2011	19	MEMORANDUM regarding 18 Unopposed MOTION for Leave to <i>file amended complaint</i> filed by Chris Edrington, St. Paul Sober Living, LLC, Alex Colins, Adam Tipton, Donald Edrington. Motion referred to Magistrate Judge Michael E. Hegarty by Judge Philip A. Brimmer on 6/13/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(pabcd) (Entered: 06/13/2011)
06/15/2011	20	MINUTE ORDER granting 18 Plaintiffs' Unopposed Motion for Leave to File an Amended Complaint. The Court directs the Clerk of Court to enter the First Amended Complaint located at docket #18-1. By Magistrate Judge Michael E. Hegarty on 6/15/2011. (mehcd) (Entered: 06/15/2011)
06/15/2011	21	FIRST AMENDED COMPLAINT against Garfield County, Board of County Commissioners, Spring Valley Sanitation District, filed by St. Paul Sober Living, LLC, Chris Edrington, Adam Tipton, Alex Colins, Donald Edrington.(mnfsl,) (Entered: 06/16/2011)
06/30/2011	22	MINUTE ORDER denying as moot 9 defendant Board of County Commissioners of Garfield County's Motion to Dismiss. By Judge Philip A. Brimmer on 6/30/11.(mnf,) (Entered: 06/30/2011)
07/14/2011	23	ANSWER to 21 Amended Complaint by Garfield County, Board of County Commissioners.(Coleman, Cassandra) (Entered: 07/14/2011)
07/21/2011	24	NOTICE of Entry of Appearance by James Francis Fosnaught on behalf of Spring Valley Sanitation District (Fosnaught, James) (Entered: 07/21/2011)
07/21/2011	25	Unopposed MOTION for Extension of Time to File Answer or Otherwise Respond re 21 Amended Complaint by Defendant Spring Valley Sanitation District. (Attachments: # 1 Proposed Order (PDF Only))(Fosnaught, James) (Entered: 07/21/2011)
07/21/2011	26	Proposed Scheduling Order by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Polin, Steven) (Entered: 07/21/2011)
07/22/2011	27	MEMORANDUM regarding 25 Unopposed MOTION for Extension of Time to File Answer or Otherwise Respond re 21 Amended Complaint filed by Spring Valley Sanitation District. Motion referred to Magistrate Judge Michael E. Hegarty by Judge Philip A. Brimmer on 7/22/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(pabcd) (Entered: 07/22/2011)
07/22/2011	28	MINUTE ORDER granting 25 Motion for Extension of Time to Answer or Otherwise Respond. Defendant Spring Valley Sanitation District shall answer or otherwise respond to Plaintiffs Amended Complaint on or before September 1, 2011. By Magistrate Judge Michael E. Hegarty on 07/22/2011.TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (mehlc2,) (Entered: 07/22/2011)
07/27/2011	29	NOTICE of Entry of Appearance by Cathy Havener Greer on behalf of Spring Valley Sanitation District (Greer, Cathy) (Entered: 07/27/2011)
07/27/2011	30	NOTICE of Entry of Appearance by William Thomas O'Connell, III on behalf of Spring Valley Sanitation District (O'Connell, William) (Entered: 07/27/2011)
08/09/2011	31	DEMAND for Trial by Jury by Defendant Spring Valley Sanitation District. (O'Connell, William) (Entered: 08/09/2011)
08/10/2011	32	Unopposed MOTION to Withdraw as Attorney by Defendant Spring Valley Sanitation District. (Attachments: # 1 Exhibit Exhibit A, # 2 Proposed Order (PDF Only))

		(Fosnaught, James) (Entered: 08/10/2011)
08/11/2011	33	MINUTE ENTRY for proceedings held before Magistrate Judge Michael E. Hegarty: Telephonic Scheduling Conference held on 8/11/2011. Discovery due by 3/1/2012. Dispositive Motions due by 4/16/2012. Settlement Conference set for 3/5/2012 10:00 AM in Courtroom A 501 before Magistrate Judge Michael E. Hegarty. Final Pretrial Conference set for 6/11/2012 09:30 AM in Courtroom A 501 before Magistrate Judge Michael E. Hegarty. (FTR: C. Coomes -- Courtroom A-501) (mehcd) (Entered: 08/11/2011)
08/11/2011	34	MEMORANDUM regarding 32 Unopposed MOTION to Withdraw as Attorney filed by Spring Valley Sanitation District. Motion referred to Magistrate Judge Michael E. Hegarty by Judge Philip A. Brimmer on 8/11/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(pabcd) (Entered: 08/11/2011)
08/11/2011	35	MINUTE ORDER granting 32 Motion to Withdraw as Attorney. Attorney James Fosnaught is hereby permitted to withdraw as counsel of record for Defendant Spring Valley Sanitation District. By Magistrate Judge Michael E. Hegarty on 08/11/2011. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(mehlc2,) (Entered: 08/11/2011)
08/11/2011	36	SCHEDULING ORDER by Magistrate Judge Michael E. Hegarty on 8/11/2011. (mehcd) (Entered: 08/11/2011)
09/01/2011	37	MOTION to Dismiss by Defendant Spring Valley Sanitation District. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Proposed Order (PDF Only))(Greer, Cathy) Modified on 10/5/2011 (lsw,). (Entered: 09/01/2011)
09/23/2011	38	First MOTION for Extension of Time to File Response/Reply as to 37 MOTION to Dismiss <i>Complaint by Defendant, Spring Valley Sanitation District</i> by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Proposed Order (PDF Only))(Polin, Steven) (Entered: 09/23/2011)
09/23/2011	39	MINUTE ORDER granting 38 Motion for Extension of Time. Plaintiffs may have until October 3, 2011 to respond to defendant Spring Valley Sanitation District's motion to dismiss 37 . By Judge Philip A. Brimmer on 9/23/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(pabsec) Modified on 9/26/2011 to correct spelling (mnfsl,). (Entered: 09/23/2011)
09/26/2011	40	REASSIGNING JUDGE. This action is reassigned to Judge R. Brooke Jackson, upon his recent appointment to the court. All future pleadings should reference Judge Jackson's initials at the end of the civil action number (such as 08-cv-00001-RBJ). Unless otherwise ordered, the dates and times for all previously scheduled matters will be maintained and will now be handled by Judge Jackson in Courtroom A702. His chambers are located in Room A738 of the Alfred A. Arraj U. S. Courthouse. His chambers telephone number is 303-844-4694. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (wjcs1,) (Entered: 09/26/2011)
09/29/2011	41	MINUTE ORDER: The parties are hereby ordered to submit a joint status report initially prepared by plaintiff(s), if represented. For details visit http://www.cod.uscourts.gov/Documents/Judges/RBJ/RBJ_Status%20Report.pdf . by Judge R. Brooke Jackson on 09/29/2011. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(rbjlc1,) (Entered: 09/29/2011)
10/03/2011	42	Plaintiffs' MOTION for Leave to File Their Second Amended Complaint Against Defendant Spring Valley Sanitation District by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Exhibit A, # 2 Proposed Order (PDF Only))(Polin, Steven) Modified on 10/4/2011 to correct title (lsw,). (Entered: 10/03/2011)

10/04/2011	43	MEMORANDUM regarding 42 MOTION for Leave to File Second Amended Complaint as to Defendant, Spring Valley Sanitation District. Motion (42) referred to Magistrate Judge Michael E. Hegarty by Judge R. Brooke Jackson on 10/4/12. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(rbjsec) (Entered: 10/04/2011)
10/04/2011	44	Docket Annotation re: 42 MOTION to Amend/Correct/Modify. Modified on 10/4/2011 to correct title. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (lsw,) (Entered: 10/04/2011)
10/12/2011	45	Joint STATUS REPORT by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Polin, Steven) (Entered: 10/12/2011)
10/26/2011	46	RESPONSE to 42 MOTION to Amend/Correct/Modify MOTION to Amend/Correct/Modify 21 Amended Complaint, 37 MOTION to Dismiss filed by Defendant Spring Valley Sanitation District. (O'Connell, William) Modified on 10/27/2011 to delete repetitive text(lsw,). (Entered: 10/26/2011)
11/10/2011	47	MINUTE ORDER denying without prejudice 42 Plaintiffs' Motion for Leave to File Their Second Amended Complaint Against Defendant Spring Valley Sanitation District, by Magistrate Judge Michael E. Hegarty on 11/10/2011. (mehcd) (Entered: 11/10/2011)
12/06/2011	48	MOTION for Leave to <i>File Second Amended Complaint as to Defendant, Spring Valley Sanitation District</i> by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Proposed Document Proposed amended complaint, # 2 Proposed Order (PDF Only))(Polin, Steven) (Entered: 12/06/2011)
12/07/2011	49	MEMORANDUM regarding 48 MOTION for Leave to File Second Amended Complaint as to Defendant, Spring Valley Sanitation District filed by Chris Edrington, St. Paul Sober Living, LLC, Alex Colins, Adam Tipton, Donald Edrington. Motion (48) referred to Magistrate Judge Michael E. Hegarty by Judge R. Brooke Jackson on 12/7/2011. Text Only Entry (rbjsec.) (Entered: 12/07/2011)
12/07/2011	50	RESPONSE to 48 MOTION for Leave to <i>File Second Amended Complaint as to Defendant, Spring Valley Sanitation District</i> filed by Defendant Spring Valley Sanitation District. (O'Connell, William) (Entered: 12/07/2011)
12/28/2011	51	Stipulated MOTION to Amend/Correct/Modify 36 Scheduling Order by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton, Defendants Garfield County, Board of County Commissioners, Spring Valley Sanitation District. (Attachments: # 1 Proposed Order (PDF Only))(O'Connell, William) (Entered: 12/28/2011)
12/29/2011	52	ORDER REFERRING MOTION(S): 51 Stipulated MOTION to Amend/Correct/Modify 36 Scheduling Order filed by Spring Valley Sanitation District, Chris Edrington, Garfield County, Board of County Commissioners, St. Paul Sober Living, LLC, Alex Colins, Adam Tipton, Donald Edrington.Motions referred to Magistrate Judge Michael E. Hegarty by Judge R. Brooke Jackson on 12/29/2011. Text Only Entry (rbjlc1,) (Entered: 12/29/2011)
12/29/2011	53	MINUTE ORDER granting in part and denying in part 51 the Stipulated Motion to Amend Scheduling Order. Designation of rebuttal experts due by 3/2/2012. Discovery due by 4/15/2012. Dispositive Motions due by 6/1/2012. Final Pretrial Conference reset for 7/31/2012 at 9:30 AM in Courtroom A 501 before Magistrate Judge Michael E. Hegarty. By Magistrate Judge Michael E. Hegarty on 12/29/2011. (mehcd) (Entered: 12/30/2011)

01/17/2012	54	ORDER granting 48 Plaintiffs' (Second) Motion for Leave to File Their Second Amended Complaint. The Clerk of the Court is directed to file Plaintiffs' Second Amended Complaint[48-1]. In the interest of judicial efficiency and maintaining a consistent docket, both Defendants shall respond to the Second Amended Complaint in accordance with Fed. R. Civ. P. 15 and all applicable local and federal rules. By Magistrate Judge Michael E. Hegarty on 1/17/2012. (mehcd) Modified on 1/17/2012 to remove text minute(lsw,). Modified on 1/20/2012 to correct signature date (lsw,). (Entered: 01/17/2012)
01/17/2012	55	Second AMENDED 21 COMPLAINT against Garfield County, Board of County Commissioners, Spring Valley Sanitation District, filed by St. Paul Sober Living, LLC, Chris Edrington, Adam Tipton, Alex Colins, Donald Edrington.(lsw,) Modified on 1/19/2012 to add linkage (lsw,). (Entered: 01/18/2012)
01/23/2012	56	ORDER SETTING TRIAL AND FINAL PRETRIAL/TRIAL PREPARATION CONFERENCE: A five-day Jury Trial is set for 8/6/2012 09:00 AM in Courtroom A 902 before Judge R. Brooke Jackson. A Final Pretrial/Trial Preparation Conference set for 7/13/2012 at 01:30 PM in Courtroom A 902 before Judge R. Brooke Jackson, by Judge R. Brooke Jackson on 01/23/2012. (rbjsec.) (Entered: 01/23/2012)
01/24/2012	57	MINUTE ORDER In light of Judge Jackson's 56 Order setting a Trial Preparation Conference for 7/13/2012, the Final Pretrial Conference set for 7/31/2012 is vacated. By Magistrate Judge Michael E. Hegarty on 1/24/2012. (mehcd) (Entered: 01/24/2012)
01/24/2012	58	NOTICE OF SUBSTITUTION OF CO-COUNSEL by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton (Dallner, James) Event changed into a Motion to Withdraw as Attorney. Modified on 1/25/2012 to change event into a Motion (lsw,). (Entered: 01/24/2012)
01/25/2012	59	ORDER granting 58 Motion to Withdraw as Attorney. Attorney Elizabeth Jewell Peros terminated. Attorney James E. Dallner's substitution in place of Ms. Peros is granted, by Judge R. Brooke Jackson on 01/25/2012. Text Only Entry(rbjsec.) (Entered: 01/25/2012)
01/30/2012	60	Joint MOTION to Dismiss Party <i>Plaintiffs, Alex Colins and Adam Tipton Claims Against Spring Valley Sanitation District</i> by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Polin, Steven) (Entered: 01/30/2012)
01/31/2012	61	MOTION to Dismiss Plaintiffs' Second Amended Complaint [CM/ECF Docket 55 by Defendant Spring Valley Sanitation District. (Attachments: # 1 Proposed Order (PDF Only), # 2 Exhibit A, # 3 Exhibit B)(O'Connell, William) Modified on 2/1/2012 added linkage (lsw,). (Entered: 01/31/2012)
01/31/2012	62	MINUTE ORDER granting 60 Joint Stipulation for Voluntary Dismissal of Plaintiffs Alex Colins and Adam Tipton's Claims Against Defendant Spring Valley Sanitation District. Each party is to pay their own attorney's fees and costs, by Judge R. Brooke Jackson on 1/31/12.(lsw,) (Entered: 01/31/2012)
02/06/2012	63	ANSWER to 55 Amended Complaint, by Garfield County, Board of County Commissioners.(Coleman, Cassandra) (Entered: 02/06/2012)
02/24/2012	64	BRIEF in Opposition to 61 MOTION to Dismiss <i>Plaintiffs' Second Amended Complaint [CM/ECF Docket #55]</i> filed by Plaintiffs Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Alex Colins, Adam Tipton. (Attachments: # 1 Proposed Order (PDF Only))(Polin, Steven) Modified on 2/27/2012 to add filers (lsw,). (Entered: 02/24/2012)
03/02/2012	65	MINUTE ORDER: After reviewing the parties' position papers and telephone discussions with counsel, the Settlement Conference set for 3/5/2012 is vacated. By Magistrate Judge

		Michael E. Hegarty on 3/2/2012. (mehcd) (Entered: 03/02/2012)
03/07/2012	66	REPLY to Response to 61 MOTION to Dismiss <i>Plaintiffs' Second Amended Complaint [CM/ECF Docket #55]</i> filed by Defendant Spring Valley Sanitation District. (Attachments: # 1 Exhibit C)(O'Connell, William) (Entered: 03/07/2012)
03/14/2012	67	Unopposed MOTION for Extension of Time to <i>Respond to Plaintiffs' First Set of Interrogatories and Requests for Production of Documents</i> by Defendant Spring Valley Sanitation District. (Attachments: # 1 Proposed Order (PDF Only))(O'Connell, William) (Entered: 03/14/2012)
03/14/2012	68	MEMORANDUM regarding 67 Unopposed MOTION for Extension of Time to <i>Respond to Plaintiffs' First Set of Interrogatories and Requests for Production of Documents</i> filed by Spring Valley Sanitation District. Motion 67 referred to Magistrate Judge Michael E. Hegarty, by Judge R. Brooke Jackson on 03/14/2012. Text Only Entry (rbjsec.) (Entered: 03/14/2012)
03/15/2012	69	MINUTE ORDER granting 67 the Defendant Spring Valley Sanitation District's Unopposed Motion for Extension of Time to Respond to Plaintiffs' First Set of Interrogatories and Requests for Production of Documents. Defendant Spring Valley Sanitation District shall respond to Plaintiff St. Paul Sober Living, LLC's First Set of Interrogatories and First Request for Production of Documents and Plaintiff Chris Edrington's First Set of Interrogatories and First Request for Production of Documents on or before 3/23/2012. By Magistrate Judge Michael E. Hegarty on 3/15/2012. (mehcd) (Entered: 03/15/2012)
04/04/2012	70	MOTION for Summary Judgment by Defendant Garfield County, Board of County Commissioners. (Coleman, Cassandra) (Entered: 04/04/2012)
04/04/2012	71	BRIEF in Support of 70 MOTION for Summary Judgment filed by Defendant Garfield County, Board of County Commissioners. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E, # 6 Exhibit F, # 7 Exhibit G)(Coleman, Cassandra) (Entered: 04/04/2012)
04/13/2012	72	MOTION to Compel <i>Discovery as to Defendant, Spring Valley Sanitation District</i> by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Exhibit Memorandum in support, # 2 Proposed Document)(Polin, Steven) (Entered: 04/13/2012)
04/15/2012	73	SUPPLEMENT/AMENDMENT to 72 MOTION to Compel <i>Discovery as to Defendant, Spring Valley Sanitation District</i> by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Polin, Steven) (Entered: 04/15/2012)
04/15/2012	74	MOTION to Amend/Correct/Modify 53 Order on Motion to Amend/Correct/Modify, <i>To Extend Discovery and Reset Dispositive Motions Deadline</i> by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E, # 6 Exhibit F, # 7 Proposed Order (PDF Only))(Polin, Steven) (Entered: 04/15/2012)
04/16/2012	75	MEMORANDUM regarding: 72 MOTION to Compel <i>Discovery as to Defendant, Spring Valley Sanitation District</i> filed by Chris Edrington, St. Paul Sober Living, LLC, Alex Colins, Adam Tipton, Donald Edrington and 74 MOTION to Amend/Correct/Modify 53 Order on Motion to Amend/Correct/Modify, <i>To Extend Discovery and Reset Dispositive Motions Deadline</i> filed by Chris Edrington, St. Paul Sober Living, LLC, Alex Colins, Adam Tipton, Donald Edrington. Motion 72 and 74 referred to Magistrate Judge Michael E. Hegarty. By Judge R. Brooke Jackson on 04/16/2012. Text Only Entry (rbjsec.) (Entered: 04/16/2012)

04/19/2012	76	MINUTE ORDER setting a hearing on 72 Plaintiffs St. Paul Sober Living and Chris Edrington's Motion to Compel the Production of Documents, Answers, or Better Answers to Interrogatories and Production of FRCP 30(b)(6) Witnesses as to Defendant Spring Valley Sanitation District for 5/2/2012 at 1:30 PM in Courtroom A 501 before Magistrate Judge Michael E. Hegarty. By Magistrate Judge Michael E. Hegarty on 4/19/2012. (mehcd) (Entered: 04/19/2012)
04/19/2012	77	MINUTE ORDER granting in part and denying in part 74 Plaintiffs["] Motion to Modify the Scheduling Order and to Extend Discovery. Discovery due by 5/16/2012. The dispositive motion deadline remains set for 6/1/2012. By Magistrate Judge Michael E. Hegarty on 4/19/2012. (mehcd) (Entered: 04/19/2012)
04/23/2012	78	NOTICE of Entry of Appearance by Cassandra Lee Coleman on behalf of Garfield County, Board of County Commissioners (Coleman, Cassandra) (Entered: 04/23/2012)
04/25/2012	79	RESPONSE to 72 MOTION to Compel <i>Discovery as to Defendant, Spring Valley Sanitation District</i> filed by Defendant Spring Valley Sanitation District. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E, # 6 Exhibit F, # 7 Exhibit G, # 8 Exhibit H, # 9 Exhibit I, # 10 Exhibit J, # 11 Exhibit K)(O'Connell, William) (Entered: 04/25/2012)
04/25/2012	80	MOTION for Extension of Time to File Response/Reply as to 70 MOTION for Summary Judgment by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Proposed Order (PDF Only))(Polin, Steven) (Entered: 04/25/2012)
04/26/2012	81	MOTION for Leave to Appear <i>Telephonically for Hearing on Plaintiffs' Motion to Compel Discovery</i> by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Proposed Order (PDF Only))(Polin, Steven) (Entered: 04/26/2012)
04/26/2012	82	RESPONSE to 80 MOTION for Extension of Time to File Response/Reply as to 70 MOTION for Summary Judgment filed by Defendant Garfield County, Board of County Commissioners. (Coleman, Cassandra) (Entered: 04/26/2012)
04/26/2012	83	MEMORANDUM regarding 81 MOTION for Leave to Appear <i>Telephonically for Hearing on Plaintiffs' Motion to Compel Discovery</i> filed by Chris Edrington, St. Paul Sober Living, LLC, Alex Colins, Adam Tipton, Donald Edrington. Motion 81 referred to Magistrate Judge Michael E. Hegarty. By Judge R. Brooke Jackson on 04/26/2012. Text Only Entry (rbjsec.) (Entered: 04/26/2012)
04/26/2012	84	NOTICE of Entry of Appearance by Andrew Coleman Gorgey on behalf of Garfield County, Board of County Commissioners (Gorgey, Andrew) (Entered: 04/26/2012)
04/27/2012	85	MINUTE ORDER granting 81 Plaintiffs' Counsel[s] Motion to Appear Telephonically for Hearing on Motion to Compel, by Magistrate Judge Michael E. Hegarty on 4/27/2012. (mehcd) (Entered: 04/27/2012)
04/27/2012	86	REPLY to Response to 80 MOTION for Extension of Time to File Response/Reply as to 70 MOTION for Summary Judgment filed by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Polin, Steven) (Entered: 04/27/2012)
04/27/2012	87	ORDER granting 80 MOTION for Extension of Time to File Response/Reply as to 70 MOTION for Summary Judgment. Response is now due May 7, 2012. By Judge R. Brooke Jackson on 04/27/2012. Text Only Entry(rbjsec.) (Entered: 04/27/2012)

04/27/2012	88	REPLY to Response to 74 MOTION to Amend/Correct/Modify 53 Order on Motion to Amend/Correct/Modify, <i>To Extend Discovery and Reset Dispositive Motions Deadline</i> filed by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Exhibit Exhibit A, # 2 Exhibit Exhibit B, # 3 Exhibit Exhibit C, # 4 Exhibit Exhibit D, # 5 Exhibit Exhibit E, # 6 Exhibit Exhibit F) (Polin, Steven) (Entered: 04/27/2012)
05/02/2012	89	COURTROOM MINUTES/MINUTE ORDER for proceedings held before Magistrate Judge Michael E. Hegarty: Telephonic Motion Hearing held on 5/2/2012, granting in part, denying in part, and denying without prejudice in part 72 Plaintiffs St. Paul Sober Living and Chris Edrington's Motion to Compel the Production of Documents, Answers or Better Answers to Interrogatories and Production of FRCP 30(B)(6) Witnesses as to Defendant Spring Valley Sanitation District. Discovery AS TO DEFENDANT SPRING VALLEY SANITATION DISTRICT ONLY is extended to 6/1/2012. Discovery for Defendant Garfield County remains set for 5/16/2012. (FTR: C. Coomes -- Courtroom A-501) (mehcd) (Entered: 05/02/2012)
05/07/2012	90	BRIEF in Opposition to 70 MOTION for Summary Judgment filed by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Polin, Steven) (Entered: 05/08/2012)
05/08/2012	91	Exhibits in Support of 90 Brief in Opposition to Motion <i>Notice of Filing of Statement of Material Facts and Exhibits in Support</i> by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Exhibit Statement of Marterial Facts in Dispute, # 2 Exhibit Exhibit 1, # 3 Exhibit Exhibit 2, # 4 Exhibit Exhibit 3, # 5 Exhibit Exhibit 4, # 6 Exhibit Exhibit 5, # 7 Exhibit Exhibit 6, # 8 Exhibit Exhibit 7, # 9 Exhibit Exhibit 8, # 10 Exhibit Exhibit 9, # 11 Exhibit Exhibit 10, # 12 Exhibit Exhibit 11, # 13 Exhibit Exhibit 12, # 14 Exhibit Exhibit 13, # 15 Exhibit Exhibit 14, # 16 Exhibit Exhibit 15, # 17 Exhibit Exhibit 16, # 18 Exhibit Exhibit 17, # 19 Exhibit Exhibit 18)(Polin, Steven) (Entered: 05/08/2012)
05/08/2012	92	Exhibits in Support of 90 Brief in Opposition to Motion <i>Notice of Filing of Statement of Material Facts and Exhibits in Support</i> by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Exhibit Exhibit 19A)(Polin, Steven) (Entered: 05/08/2012)
05/08/2012	93	Exhibits in Support of 90 Brief in Opposition to Motion <i>Notice of Filing of Statement of Material Facts and Exhibits in Support</i> by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Exhibit Exhibit 19B)(Polin, Steven) (Entered: 05/08/2012)
05/08/2012	94	Exhibits in Support of 90 Brief in Opposition to Motion, 92 Exhibits, 93 Exhibits, <i>Notice of Filing of Statement of Material Facts and Exhibits in Support</i> by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Continuation of Main Document Exhibit 19C)(Polin, Steven) (Entered: 05/08/2012)
05/08/2012	95	Exhibits in Support of 94 Exhibits, 90 Brief in Opposition to Motion, 92 Exhibits, 93 Exhibits, <i>Notice of Filing of Statement of Material Facts and Exhibits in Support</i> by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Continuation of Main Document Exhibit 19D)(Polin, Steven) (Entered: 05/08/2012)
05/08/2012	96	Exhibits in Support of 90 Brief in Opposition to Motion <i>Notice of Filing of Statement of Material Facts and Exhibits in Support</i> by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Exhibit Exhibit 20, # 2 Exhibit Exhibit 21, # 3 Deposition Excerpts Exhibit 22, # 4 Deposition

		Excerpts Exhibit 23, # 5 Deposition Excerpts Exhibit 24)(Polin, Steven) (Entered: 05/08/2012)
05/08/2012	97	Exhibits in Support of 90 Brief in Opposition to Motion <i>Notice of Filing of Statement of Material Facts and Exhibits in Support</i> by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Deposition Excerpts Exhibit 25A)(Polin, Steven) (Entered: 05/08/2012)
05/08/2012	98	Exhibits in Support of 97 Exhibits, <i>Notice of Filing of Statement of Material Facts and Exhibits in Support</i> by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Continuation of Main Document Exhibit 25B)(Polin, Steven) (Entered: 05/08/2012)
05/08/2012	99	Exhibits in Support of 98 Exhibits, 97 Exhibits, <i>Notice of Filing of Statement of Material Facts and Exhibits in Support</i> by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Continuation of Main Document Exhibit 25C)(Polin, Steven) (Entered: 05/08/2012)
05/08/2012	100	Exhibits in Support of 99 Exhibits, 98 Exhibits, 97 Exhibits, <i>Notice of Filing of Statement of Material Facts and Exhibits in Support</i> by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Continuation of Main Document Exhibit 25D)(Polin, Steven) (Entered: 05/08/2012)
05/08/2012	101	Exhibits in Support of 90 Brief in Opposition to Motion <i>Notice of Filing of Statement of Material Facts and Exhibits in Support</i> by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Deposition Excerpts Exhibit 26, # 2 Deposition Excerpts Exhibit 27, # 3 Exhibit Exhibit 28, # 4 Exhibit Exhibit 29, # 5 Exhibit Exhibit 30, # 6 Exhibit Exhibit 31, # 7 Deposition Excerpts Exhibit 32, # 8 Deposition Excerpts Exhibit 33, # 9 Exhibit Exhibit 34)(Polin, Steven) (Entered: 05/08/2012)
05/10/2012	102	STATUS REPORT by Defendant Spring Valley Sanitation District. (O'Connell, William) (Entered: 05/10/2012)
05/11/2012	103	REPLY to Response to 70 MOTION for Summary Judgment filed by Defendant Garfield County, Board of County Commissioners. (Attachments: # 1 Exhibit Exhibit H, # 2 Exhibit Exhibit I, # 3 Exhibit Exhibit J, # 4 Exhibit Exhibit K, # 5 Exhibit Exhibit L, # 6 Exhibit Exhibit M, # 7 Exhibit Exhibit N, # 8 Exhibit Exhibit O, # 9 Exhibit Exhibit P) (Coleman, Cassandra) (Entered: 05/11/2012)
05/29/2012	104	MOTION for Summary Judgment by Defendant Spring Valley Sanitation District. (Attachments: # 1 Exhibit A, # 2 Exhibit B-1, # 3 Exhibit B-2, # 4 Exhibit B-3, # 5 Exhibit C, # 6 Exhibit D, # 7 Exhibit E, # 8 Exhibit F, # 9 Exhibit G, # 10 Exhibit H, # 11 Exhibit I, # 12 Exhibit J, # 13 Exhibit K, # 14 Proposed Order (PDF Only))(Greer, Cathy) (Entered: 05/29/2012)
06/01/2012	105	MOTION for Summary Judgment <i>Against Defendant, Board of County Commissioners, Garifield County</i> by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Exhibit Memorandum in support, # 2 Exhibit Statement of Material Facts Not in Dispute)(Polin, Steven) (Entered: 06/01/2012)
06/02/2012	106	MOTION to Amend/Correct/Modify 105 MOTION for Summary Judgment <i>Against Defendant, Board of County Commissioners, Garifield County and Statement of Material Facts Not in Dispute</i> by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Exhibit Memorandum in support in Support of Summary Judgment, # 2 Exhibit Statement of Material Facts Not in Dispute, # 3 Deposition Excerpts Exhibit 1, # 4 Exhibit Exhibit 2, # 5 Exhibit Exhibit 3, #

		6 Exhibit Exhibit 4, # 7 Exhibit Exhibit 5, # 8 Exhibit Exhibit 6, # 9 Exhibit Exhibit 7, # 10 Exhibit Exhibit 8, # 11 Exhibit Exhibit 9, # 12 Exhibit Exhibit 10, # 13 Exhibit Exhibit 11, # 14 Exhibit Exhibit 12, # 15 Exhibit Exhibit 13, # 16 Exhibit Exhibit 14, # 17 Exhibit Exhibit 15, # 18 Exhibit Exhibit 16, # 19 Exhibit Exhibit 17, # 20 Exhibit Exhibit 18, # 21 Exhibit Exhibit 19, # 22 Exhibit Exhibit 20, # 23 Exhibit Exhibit 21, # 24 Exhibit Exhibit 22, # 25 Exhibit Exhibit 23, # 26 Deposition Excerpts Exhibit 24-A, # 27 Deposition Excerpts Exhibit 24-B, # 28 Deposition Excerpts Exhibit 25, # 29 Deposition Excerpts Exhibit 26, # 30 Exhibit Exhibit 27, # 31 Exhibit Exhibit 28, # 32 Exhibit Exhibit 29, # 33 Deposition Excerpts Exhibit 30, # 34 Exhibit Exhibit 31, # 35 Exhibit Exhibit 32, # 36 Deposition Excerpts Exhibit 33, # 37 Deposition Excerpts Exhibit 34, # 38 Deposition Excerpts Exhibit 35, # 39 Exhibit Exhibit 36, # 40 Exhibit Exhibit 37) (Polin, Steven) (Entered: 06/02/2012)
06/05/2012	107	MOTION to Strike 106 MOTION to Amend/Correct/Modify 105 MOTION for Summary Judgment <i>Against Defendant, Board of County Commissioners, Garfield County and Statement of Material Facts Not in Dispute</i> by Defendant Garfield County, Board of County Commissioners. (Coleman, Cassandra) (Entered: 06/05/2012)
06/06/2012	108	MOTION to Withdraw 84 Notice of Entry of Appearance of <i>Andrew C. Gorgey</i> by Defendant Garfield County, Board of County Commissioners. (Attachments: # 1 Proposed Order (PDF Only))(Coleman, Cassandra) (Entered: 06/06/2012)
06/06/2012	109	ORDER granting 108 Motion to Withdraw. Attorney Andrew Gorgey is ordered withdrawn. By Judge R. Brooke Jackson on 06/06/2012. Text Only Entry(rbjsec.) (Entered: 06/06/2012)
06/08/2012	110	TRANSCRIPT of Motion Hearing held on 05/02/2012 before Magistrate Judge Hegarty. Pages: 1-50. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 9/10/2012. (Avery Woods Reporting,) (Entered: 06/08/2012)
06/14/2012	111	First MOTION for Extension of Time to File Response/Reply as to 104 MOTION for Summary Judgment <i>file by Defendant, Spring Valley Sanitation District</i> by Plaintiffs Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC. and Adam Tipton (Attachments: # 1 Proposed Order (PDF Only))(Polin, Steven) Modified on 6/15/2012 to add a filer (gmssl,). (Entered: 06/14/2012)
06/14/2012	112	RESPONSE to 111 First MOTION for Extension of Time to File Response/Reply as to 104 MOTION for Summary Judgment <i>file by Defendant, Spring Valley Sanitation District</i> filed by Defendant Spring Valley Sanitation District. (Greer, Cathy) (Entered: 06/14/2012)
06/18/2012	113	ORDER granting 111 First MOTION for Extension of Time to File Response/Reply as to 104 MOTION for Summary Judgment. The Court limits the response to 15 pages. Both sides should be prepared to present oral argument at the trial preparation conference set July 13, 2012. By Judge R. Brooke Jackson on 06/18/2012. Text Only Entry(rbjsec.) (Entered: 06/18/2012)

06/20/2012	<u>114</u>	BRIEF in Opposition to <u>105</u> MOTION for Summary Judgment <i>Against Defendant, Board of County Commissioners, Garfield County</i> filed by Defendant Garfield County, Board of County Commissioners. (Attachments: # <u>1</u> Exhibit A, # <u>2</u> Exhibit B, # <u>3</u> Exhibit C, # <u>4</u> Exhibit D)(Coleman, Cassandra) (Entered: 06/20/2012)
06/28/2012	<u>115</u>	MOTION to Strike <i>Expert</i> , MOTION for Sanctions by Defendant Garfield County, Board of County Commissioners. (Coleman, Cassandra) (Entered: 06/28/2012)
06/28/2012	<u>116</u>	BRIEF in Support of <u>115</u> MOTION to Strike <i>Expert</i> MOTION for Sanctions filed by Defendant Garfield County, Board of County Commissioners. (Attachments: # <u>1</u> Exhibit A, # <u>2</u> Exhibit B)(Coleman, Cassandra) (Entered: 06/28/2012)
06/28/2012	<u>117</u>	Unopposed MOTION to Withdraw as Attorney <i>Michelle E. Cormier as Co-Counsel</i> by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # <u>1</u> Proposed Order (PDF Only))(Dallner, James) (Entered: 06/28/2012)
06/29/2012	<u>118</u>	BRIEF in Opposition to <u>104</u> MOTION for Summary Judgment <i>by Defendant, Spring Valley Sanitatiion District</i> filed by Plaintiffs Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC. (Attachments: # <u>1</u> Deposition Excerpts Exhibit 1, # <u>2</u> Deposition Excerpts Exhibit 2, # <u>3</u> Deposition Excerpts Exhibit 3, # <u>4</u> Exhibit Exhibit 4, # <u>5</u> Exhibit Exhibit 5, # <u>6</u> Exhibit Exhibit 6, # <u>7</u> Exhibit Exhibit 7, # <u>8</u> Deposition Excerpts Exhibit 8, # <u>9</u> Exhibit Exhibit 9, # <u>10</u> Exhibit Exhibit 10, # <u>11</u> Exhibit Exhibit 11, # <u>12</u> Exhibit Exhibit 12, # <u>13</u> Exhibit Exhibit 13, # <u>14</u> Exhibit Exhibit 14, # <u>15</u> Exhibit Exhibit 15, # <u>16</u> Exhibit Exhibit 16, # <u>17</u> Exhibit Exhibit 17, # <u>18</u> Exhibit Exhibit 18, # <u>19</u> Exhibit Exhibit 19)(Polin, Steven) (Entered: 06/29/2012)
06/29/2012	<u>119</u>	BRIEF in Opposition to <u>107</u> MOTION to Strike <u>106</u> MOTION to Amend/Correct/Modify <u>105</u> MOTION for Summary Judgment <i>Against Defendant, Board of County Commissioners, Garfield County and Statement of Material Facts Not in Dispute</i> filed by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Polin, Steven) (Entered: 06/29/2012)
07/05/2012	<u>120</u>	ORDER. Defendant Spring Valley Sanitation Districts Motion to Dismiss [#37]: DENIED This motion became moot upon plaintiffs filing their Second Amended Complaint. Defendant Spring Valley Sanitation Districts Motion to Dismiss Plaintiffs Second Amended Complaint <u>61</u> is DENIED. Motion for Summary Judgment of Defendant Board of County Commissioners of Garfield County, State of Colorado <u>70</u> is DENIED. Defendant Spring Valley Sanitation Districts Motion for Summary Judgment <u>104</u> is DENIED. Plaintiffs Motion for Summary Judgment as to Defendant Board of County Commissioners, Garfield County <u>105</u> is DENIED. Plaintiffs, St. Paul Sober Living and Chris Edringtons Corrected Statement of Material Facts Not in Dispute and Memorandum in Support of Summary Judgment <u>106</u> is GRANTED. Defendant Board of County Commissioners Motion to Strike Plaintiffs Statements and Attachments Thereto Untimely Filed on June 2, 2002 <u>107</u> is DENIED. [Defendant Boards] Motion to Strike Expert and Motion for Sanctions <u>115</u> is DENIED. Unopposed Motion to Withdraw Michelle E. Cormier as Co-Counsel <u>117</u> is GRANTED. By Judge R. Brooke Jackson on 7/5/2012. (sahsl,) (Entered: 07/05/2012)
07/06/2012	<u>121</u>	Proposed Pretrial Order by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # <u>1</u> Appendix Plaintiffs' Witness List, # <u>2</u> Appendix Plaintiffs' Exhibit List, # <u>3</u> Appendix BOCC Witness List, # <u>4</u> Appendix BOCC Exhibit List, # <u>5</u> Appendix SVSD Witness List, # <u>6</u> Appendix SVSD Exhibit List)(Polin, Steven) (Entered: 07/06/2012)
07/13/2012	<u>122</u>	MINUTE ENTRY for Trial Preparation Conference held before Judge R. Brooke Jackson on 7/13/2012. Court Reporter: Kara Spitler. (lag) (Entered: 07/13/2012)

07/16/2012	123	STIPULATION <i>for Dismissal with Prejudice of All Claims Against Defendant Spring Valley Sanitation District</i> by Plaintiffs Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Defendants Garfield County, Board of County Commissioners, Spring Valley Sanitation District. (Attachments: # 1 Proposed Order (PDF Only))(Greer, Cathy) (Entered: 07/16/2012)
07/16/2012	124	ORDER granting 123 Stipulation for Dismissal with Prejudice of All Claims by Plaintiffs St. Paul Sober Living, LLC, Chris Edrington, and Donald Edrington Against Defendant Spring Valley Sanitation District or which could have been brought by Plaintiffs are hereby dismissed with prejudice, and each party to pay his or its own costs and fees. By Judge R. Brooke Jackson on 7/16/12. (mnfsl,) (Entered: 07/16/2012)
07/19/2012	125	MINUTE ORDER: A Telephone Conference is set for 7/19/2012 10:00 AM in Courtroom A 902 before Judge R. Brooke Jackson. Counsel are directed to conference a telephone call between each other and then contact the Court at (303) 844-4694. By Judge R. Brooke Jackson on 07/19/2012. Text Only Entry (rbjsec.) (Entered: 07/19/2012)
07/19/2012	126	MINUTE ENTRY for Telephonic Status Conference held before Judge R. Brooke Jackson on 7/19/2012. Court Reporter: Kara Spitler. (lag) (Entered: 07/19/2012)
07/20/2012	127	TRANSCRIPT of Final Trial-Preparation Conference held on 7-13-12 before Judge Jackson. Pages: 1-75. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 10/22/2012. (Spitler, Kara) (Entered: 07/20/2012)
07/20/2012	128	TRANSCRIPT of Telephonic Hearing on Discovery Dispute held on 7-19-12 before Judge Jackson. Pages: 1-16. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 10/22/2012. (Spitler, Kara) (Entered: 07/20/2012)
07/23/2012	129	Corrected TRANSCRIPT of Corrected Telephonic Hearing on Discovery Dispute held on 7-19-12 before Judge Jackson. Pages: 1-16. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov.

		Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 10/25/2012. (Spitler, Kara) (Entered: 07/23/2012)
07/26/2012	130	MOTION to Continue <i>Trial</i> by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Proposed Order (PDF Only))(Polin, Steven) (Entered: 07/26/2012)
07/26/2012	131	BRIEF in Opposition to 130 MOTION to Continue <i>Trial</i> filed by Defendant Garfield County, Board of County Commissioners. (Coleman, Cassandra) (Entered: 07/26/2012)
07/27/2012	132	REPLY to Response to 130 MOTION to Continue <i>Trial</i> filed by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Polin, Steven) (Entered: 07/27/2012)
07/30/2012	133	ORDER granting 130 Plaintiffs' Motion to Continue by Judge R. Brooke Jackson on 7/30/2012.(ervsl,) (Entered: 07/30/2012)
08/28/2012	134	MINUTE ORDER: A Telephone Trial Scheduling Conference is set for 9/6/2012 09:00 AM in Courtroom A 902 before Judge R. Brooke Jackson. Counsel are directed to conference a call between each other and then contact the Court at (303) 844-4694. By Judge R. Brooke Jackson on 08/28/2012. Text Only Entry (rbjsec.) (Entered: 08/28/2012)
09/06/2012	135	MINUTE ENTRY for Scheduling Conference before Judge R. Brooke Jackson held on 9/6/2012. Jury Trial set for 12/18/2013 09:00 AM in Courtroom A902 before Judge R. Brooke Jackson. Court Reporter: Kara Spitler. (lag) (Entered: 09/06/2012)
09/06/2012	136	AMENDED MINUTE ENTRY for re 135 Telephonic Scheduling Conference held before Judge R. Brooke Jackson. Minutes amended to correct Jury Trial date. Jury Trial set for 12/18/2012 at 9:00 AM in Courtroom A902 before Judge R. Brooke Jackson. Court Reporter: Kara Spitler. (lag) (Entered: 09/07/2012)
12/09/2012	137	MOTION for Leave to <i>Substitute Expert Witness</i> 133 Order on Motion to Continue by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4, # 5 Proposed Order (PDF Only))(Polin, Steven) (Entered: 12/09/2012)
12/10/2012	138	ORDER denying 137 MOTION for Leave to Substitute Expert Witness. According to paragraph 7 of your motion, the defendant opposes the motion. It would not be fair to the defendant to have to defend against an expert of whom they were informed 11 days before trial. On the other hand, the death of your expert put you in a difficult position. Please confer again with defense counsel. If you consider that this expert is critical to your case, and defendant opposes your renewed request to be able to use him, then the Court will consider another short continuance of the trial to give the defendant a reasonable opportunity to prepare. In the circumstances, I will not strike the expert. By Judge R. Brooke Jackson on 12/10/2012. Text Only Entry(rbjsec.) (Entered: 12/10/2012)
12/10/2012	139	MOTION for Hearing/Conference by Defendant Garfield County, Board of County Commissioners. (Coleman, Cassandra) (Entered: 12/10/2012)
12/11/2012	140	RESPONSE to 139 MOTION for Hearing/Conference filed by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Polin, Steven) (Entered: 12/11/2012)
12/11/2012	141	ORDER granting 139 Motion for Hearing/Conference. Counsel are directed to jointly contact Chambers by email or at (303) 844-4694 to set a Telephone Status Conference prior to the trial set December 18, 2012. By Judge R. Brooke Jackson on 12/11/2012. Text Only Entry(rbjsec.) (Entered: 12/11/2012)

12/11/2012	142	MINUTE ORDER: A Telephone Status Conference is set for 12/12/2012 11:00 AM in Courtroom A 902 before Judge R. Brooke Jackson. Counsel are directed to coordinate a conference call between each other and then contact Chambers at (303) 844-4694. By Judge R. Brooke Jackson on 12/11/2012. Text Only Entry (rbjsec.) (Entered: 12/11/2012)
12/12/2012	143	MINUTE ENTRY for Telephonic Status Conference held before Judge R. Brooke Jackson on 12/12/2012. ORDERED: Mr. Wainwright shall be made available to defense counsel to depose in Garfield County, Colorado no later than December 14, 2012. Defense counsel shall bear the cost of transporting Plaintiffs counsel and Mr. Wainwright to and from Denver International Airport to Garfield County. The deposition may also occur by telephone if the parties agree. ORDERED: Only persons listed on the witness lists may testify at trial unless the opposing party agrees otherwise. ORDERED: Jury Trial will commence on December 19, 2012 at 9:00 a.m. Court Reporter: Kara Spitler. (lag) (Entered: 12/12/2012)
12/12/2012	144	AMENDED MINUTE ENTRY re 143 Status Conference held before Judge R. Brooke Jackson. Minutes Amended to correct trial date. Court Reporter: Kara Spitler. (lag) (Entered: 12/12/2012)
12/17/2012	145	NOTICE of Entry of Appearance of <i>Fabian Hoffner</i> by Steven Gary Polin on behalf of Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton (Polin, Steven) (Entered: 12/17/2012)
12/18/2012	146	MINUTE ENTRY for Jury Trial - Day One held before Judge R. Brooke Jackson on 12/18/2012. Jury selected. Opening statements. Evidence entered. Trial continued. Court Reporter: Kara Spitler. (Attachments: # 1 Redacted Strike Sheet) (lag) (Entered: 12/20/2012)
12/19/2012	147	MINUTE ENTRY for Jury Trial - Day Two held before Judge R. Brooke Jackson on 12/19/2012. Evidence entered. Trial continued. Court Reporter: Kara Spitler. (Attachments: # 1 Juror Question #1, # 2 Juror Question #2, # 3 Juror Question #3, # 4 Juror Question #4, # 5 Juror Question #5, # 6 Juror Question #6) (lag) (Entered: 12/20/2012)
12/20/2012	148	MINUTE ENTRY for Jury Trial - Day Three held before Judge R. Brooke Jackson on 12/20/2012. Evidence entered. Plaintiff rests. Defense rests. Closing arguments. Trial continued. Court Reporter: Kara Spitler. (Attachments: # 1 Juror Question #7, # 2 Juror Question #8, # 3 Juror Question #9, # 4 Juror Question #10) (lag) (Entered: 12/21/2012)
12/21/2012	149	MINUTE ENTRY for Jury Trial - Day Four completed before Judge R. Brooke Jackson on 12/21/2012. Rebuttal closing argument. Jury goes into deliberation. JURY VERDICT. Jury excused. Trial completed. Court Reporter: Kara Spitler. (Attachments: # 1 Juror Question #11, # 2 Juror Question #12, # 3 Answer to Juror Questions 11 and 12, # 4 Plaintiffs' Exhibit List, # 5 Defendant's Exhibit List, # 6 Plaintiffs' Witness List, # 7 Defendant's Witness List, # 8 Jury Instructions, # 9 Representation of Verdict Form) (lag) (Entered: 12/21/2012)
12/28/2012	150	FINAL JUDGMENT in favor of St. Paul Sober Living, LLC, Adam Tipton, Alex Colins, Chris Edrington, and Donald Edrington against Garfield County, Board of County Commissioners re: 149 Minute Entry for Jury Trial, by Edward P. Butler, Deputy Clerk on 12/28/12. (alvsl) (Entered: 12/28/2012)
01/10/2013	151	Partial TRANSCRIPT of Excerpt, Trial to Jury, Day 1 held on 12-18-12 before Judge Jackson. Pages: 1-165. <P> NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is

		not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. </P> Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 4/15/2013. (Spitler, Kara) (Entered: 01/10/2013)
01/10/2013	152	TRANSCRIPT of Trial to Jury, Day 2 held on 12-19-12 before Judge Jackson. Pages: 166-499. <P> NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. </P> Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 4/15/2013. (Spitler, Kara) (Entered: 01/10/2013)
01/10/2013	153	TRANSCRIPT of Trial to Jury, Day 3 held on 12-20-12 before Judge Jackson. Pages: 500-732. <P> NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. </P> Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 4/15/2013. (Spitler, Kara) (Entered: 01/10/2013)
01/10/2013	154	TRANSCRIPT of Trial to Jury, Day 4 held on 12-21-12 before Judge Jackson. Pages: 733-771. <P> NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. </P> Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 4/15/2013. (Spitler, Kara) (Entered: 01/10/2013)
01/11/2013	155	Corrected TRANSCRIPT of Trial to Jury, Day 2 held on 12-19-12 before Judge Jackson. Pages: 166-499. Prepared by: Kara Spitler. <P> NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. </P> Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 4/15/2013. (Spitler, Kara) (Entered: 01/11/2013)

01/11/2013	156	Proposed Bill of Costs by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Exhibit Exhibit A - Itemized Costs and Supporting Documents)(Dallner, James) (Entered: 01/11/2013)
01/11/2013	157	MOTION for Extension of Time to <i>File Motion for Attorneys' Fees</i> by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Proposed Order (PDF Only))(Polin, Steven) (Entered: 01/11/2013)
01/17/2013	158	ORDER denying 157 MOTION for Extension of Time to File Motion for Attorneys' Fees. The rule requires that you confer with opposing counsel. Sending an email is not conferring. Please confer, then refile and indicate whether the motion for extension is opposed. By Judge R. Brooke Jackson on 01/17/2013. Text Only Entry(rbjsec.) (Entered: 01/17/2013)
01/18/2013	159	MOTION for Extension of Time to <i>File Motion for Judgment as a Matter of Law</i> by Defendant Garfield County, Board of County Commissioners. (Attachments: # 1 Receipt) (Williams, Tari) (Entered: 01/18/2013)
01/18/2013	160	MOTION for Extension of Time to <i>File Motion for Attorneys' Fees</i> by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Proposed Order (PDF Only))(Polin, Steven) (Entered: 01/18/2013)
01/22/2013	161	ORDER granting 159 Unopposed MOTION for Extension of Time to File Motion for Judgment as a Matter of Law. The motion is due January 28, 2013. By Judge R. Brooke Jackson on 01/22/2013. Text Only Entry(rbjsec.) (Entered: 01/22/2013)
01/22/2013	162	ORDER granting 160 Unopposed MOTION for Extension of Time to File Motion for Attorneys' Fees. Motion is due February 11, 2013. By Judge R. Brooke Jackson on 01/22/2013. Text Only Entry(rbjsec.) (Entered: 01/22/2013)
01/28/2013	163	MOTION for Judgment NOV by Defendant Garfield County, Board of County Commissioners. (Coleman, Cassandra) (Entered: 01/28/2013)
01/28/2013	164	BRIEF in Support of 163 MOTION for Judgment NOV filed by Defendant Garfield County, Board of County Commissioners. (Attachments: # 1 Exhibit)(Coleman, Cassandra) (Entered: 01/28/2013)
02/11/2013	165	MOTION for Attorney Fees <i>and Litigation Expenses</i> by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4, # 5 Exhibit 5, # 6 Exhibit 6, # 7 Proposed Order (PDF Only))(Dallner, James) (Entered: 02/11/2013)
02/13/2013	166	Unopposed MOTION to Amend/Correct/Modify 165 MOTION for Attorney Fees <i>and Litigation Expenses to Substitute Exhibit 1</i> by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Exhibit 1, # 2 Proposed Order (PDF Only))(Dallner, James) (Entered: 02/13/2013)
02/14/2013	167	ORDER granting 166 Unopposed MOTION to Amend/Correct/Modify 165 MOTION for Attorney Fees and Litigation Expenses to Substitute Exhibit 1. By Judge R. Brooke Jackson on 02/14/2013. Text Only Entry(rbjsec.) (Entered: 02/14/2013)
02/14/2013	168	OBJECTIONS to 156 Proposed Bill of Costs by Defendant Garfield County, Board of County Commissioners. (Williams, Tari) (Entered: 02/14/2013)
02/18/2013	169	MOTION to Supplement 156 Proposed Bill of Costs by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Exhibit 1, # 2 Proposed Order (PDF Only))(Dallner, James) (Entered: 02/18/2013)

02/19/2013	170	Costs Taxed. Bill of Costs is denied over Plaintiff's objection; costs were not awarded in Final Judgment, per Local Rule 54.1. (alvsl) (Entered: 02/19/2013)
02/20/2013	171	ORDER finding as moot 169 Motion to Supplement. By Judge R. Brooke Jackson on 02/20/2013. Text Only Entry(rbjsec.) (Entered: 02/20/2013)
02/22/2013	172	BRIEF in Opposition to 163 MOTION for Judgment NOV filed by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Exhibit 1)(Polin, Steven) (Entered: 02/22/2013)
02/26/2013	173	MOTION for Extension of Time to <i>Confirm Date to File Notice of Appeal</i> by Defendant Garfield County, Board of County Commissioners. (Attachments: # 1 Proposed Order (PDF Only))(Williams, Tari) (Entered: 02/26/2013)
02/26/2013	174	MOTION for Review re 170 Costs Taxed by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Dallner, James) (Entered: 02/26/2013)
02/27/2013	175	NOTICE of Change of Address/Contact Information by Cassandra Lee Coleman (Coleman, Cassandra) (Entered: 02/27/2013)
03/01/2013	176	ORDER denying 173 MOTION for Extension of Time to Confirm Date to File Notice of Appeal. This asks for an advisory opinion, which the Court declines to do. By Judge R. Brooke Jackson on 03/01/2013. Text Only Entry(rbjsec.) (Entered: 03/01/2013)
03/07/2013	177	RESPONSE to 165 MOTION for Attorney Fees <i>and Litigation Expenses</i> filed by Defendant Garfield County, Board of County Commissioners. (Attachments: # 1 Exhibit Ex. 1 to Defendant's Response to Motion for Attorneys Fees)(Williams, Tari) (Entered: 03/07/2013)
03/11/2013	178	REPLY to Response to 163 MOTION for Judgment NOV filed by Defendant Garfield County, Board of County Commissioners. (Williams, Tari) (Entered: 03/11/2013)
03/19/2013	179	MOTION to Amend/Correct/Modify 150 Judgment, by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Exhibit 1, # 2 Proposed Order (PDF Only))(Polin, Steven) (Entered: 03/19/2013)
03/20/2013	180	RESPONSE to 174 MOTION for Review re 170 Costs Taxed filed by Defendant Garfield County, Board of County Commissioners. (Williams, Tari) (Entered: 03/20/2013)
03/21/2013	181	MOTION for Leave to <i>Treat Plaintiffs' Request for Attorneys' Fees as a Timely Motion Under Fed. R. Civ. P. 59</i> by Defendant Garfield County, Board of County Commissioners. (Williams, Tari) (Entered: 03/21/2013)
03/25/2013	182	REPLY to Response to 165 MOTION for Attorney Fees <i>and Litigation Expenses</i> filed by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E)(Dallner, James) (Entered: 03/25/2013)
04/12/2013	183	RESPONSE to 179 MOTION to Amend/Correct/Modify 150 Judgment, filed by Defendant Garfield County, Board of County Commissioners. (Williams, Tari) (Entered: 04/12/2013)
04/12/2013	184	OBJECTIONS to 182 Reply to Response to Motion, <i>as to Affidavits Not Served With Original Motion</i> by Defendant Garfield County, Board of County Commissioners. (Williams, Tari) (Entered: 04/12/2013)
04/15/2013	185	Corrected TRANSCRIPT of Trial to Jury, Day 4 held on 12-12-12 before Judge Jackson. Pages: 733-771. <P> NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of

		Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 7/18/2013. (Spitler, Kara) (Entered: 04/15/2013)
04/15/2013	186	BRIEF in Opposition to 181 MOTION for Leave to <i>Treat Plaintiffs' Request for Attorneys' Fees as a Timely Motion Under Fed. R. Civ. P. 59</i> filed by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Polin, Steven) (Entered: 04/15/2013)
04/29/2013	187	REPLY to Response to 179 MOTION to Amend/Correct/Modify 150 Judgment, filed by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Polin, Steven) (Entered: 04/29/2013)
04/30/2013	188	REPLY to Response to 181 MOTION for Leave to <i>Treat Plaintiffs' Request for Attorneys' Fees as a Timely Motion Under Fed. R. Civ. P. 59</i> filed by Defendant Garfield County, Board of County Commissioners. (Williams, Tari) (Entered: 04/30/2013)
05/06/2013	189	REPLY to 184 Objections by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton. (Polin, Steven) (Entered: 05/06/2013)
05/22/2013	190	REPLY to 184 Objections and Motion to Strike Affidavits Not Served With the Original Motion [Doc. Nos. 165 and 182] by Defendant Garfield County, Board of County Commissioners. (Williams, Tari) (Entered: 05/22/2013)
06/11/2013	191	NOTICE of Entry of Appearance of <i>Co-Counsel</i> by Kathryn Jenelle Steffey on behalf of All Defendants (Steffey, Kathryn) (Entered: 06/11/2013)
06/11/2013	192	NOTICE of Entry of Appearance of <i>Co-Counsel</i> by Kathryn Jenelle Steffey on behalf of All Defendants (Steffey, Kathryn) (Entered: 06/11/2013)
06/12/2013	193	NOTICE of Entry of Appearance of <i>Co-Counsel</i> by J. Craig Smith on behalf of All Defendants (Smith, J.) (Entered: 06/12/2013)
06/20/2013	194	NOTICE Defendant's Submission of Proposed Order on Permanent Injunction by Defendant Garfield County, Board of County Commissioners (Attachments: # 1 Exhibit proposed Order on Permanent Injunction)(Williams, Tari) (Entered: 06/20/2013)
06/21/2013	195	NOTICE re 150 Judgment, <i>Proposed Permanent Injunction</i> by Plaintiffs Alex Colins, Chris Edrington, Donald Edrington, St. Paul Sober Living, LLC, Adam Tipton (Attachments: # 1 Proposed Order (PDF Only))(Polin, Steven) (Entered: 06/21/2013)
06/21/2013	196	NOTICE OF APPEAL as to 150 Judgment, by Defendants Garfield County, Board of County Commissioners, Spring Valley Sanitation District (Filing fee \$ 455, Receipt Number 1082-3417763) (Steffey, Kathryn) (Entered: 06/21/2013)
06/24/2013	197	LETTER Transmitting Notice of Appeal to all counsel advising of the transmittal of the 196 Notice of Appeal filed by Spring Valley Sanitation District, Garfield County and Board of County Commissioners to the U.S. Court of Appeals. (Retained Counsel, Fee paid) (Attachments: # 1 Docket Sheet, # 2 Preliminary Record)(mjfsl) (Entered: 06/24/2013)
06/25/2013	198	USCA Case Number 13-1269 for 196 Notice of Appeal filed by Spring Valley Sanitation District, Garfield County, Board of County Commissioners. (dbrow,) (Entered: 06/25/2013)

07/05/2013	199	TRANSCRIPT ORDER FORM re 196 Notice of Appeal by Defendants Garfield County, Board of County Commissioners, Spring Valley Sanitation District (Steffey, Kathryn) (Entered: 07/05/2013)
07/08/2013	200	LETTER TO USCA and all counsel certifying the record is complete as to 196 Notice of Appeal filed by Spring Valley Sanitation District, Garfield County, Board of County Commissioners. A transcript order form was filed stating that the necessary transcript is already on file. (Appeal No. 13-1269) Text Only Entry (dbrow,) (Entered: 07/08/2013)
07/08/2013	201	ORDER of USCA as to 196 Notice of Appeal filed by Spring Valley Sanitation District, Garfield County, Board of County Commissioners. Appellant shall file a response to appellees motion to dismiss this appeal. (USCA Case No. 13-1269) (dbrow,) (Entered: 07/08/2013)
09/12/2013	202	ORDER of USCA as to 196 Notice of Appeal filed by Spring Valley Sanitation District, Garfield County, Board of County Commissioners. This appeal is premature and is DISMISSED for lack of jurisdiction. (USCA Case No. 13--1269) (dbrow,) (Entered: 09/12/2013)
09/17/2013	203	ORDER on post trial motions: denying 163 Motion for Judgment NOV; granting in part and denying in part 165 Motion for Attorney Fees; granting 174 Motion for Review; granting 179 Motion to Amend/Correct/Modify; finding as moot 181 Motion for Leave. By Judge R. Brooke Jackson on 9/17/2013.(trlee,) (Entered: 09/17/2013)
09/17/2013	204	ORDER on PERMANENT INJUNCTION. By Judge R. Brooke Jackson on 9/17/201. (trlee,) (Entered: 09/17/2013)
09/17/2013	206	Amended ORDER on Permanent Injunction re: 204 by Judge R. Brooke Jackson on 09/17/13. (jjhsl,) (Entered: 10/15/2013)
10/08/2013	205	AMENDED FINAL JUDGMENT by Clerk in favor of St. Paul Sober Living, LLC, Adam Tipton, Alex Colins, Chris Edrington, Donald Edrington against Garfield County, Board of County Commissioners, by Clerk on 10/8/2013. (trlee,) (Entered: 10/08/2013)
10/23/2013	207	NOTICE OF APPEAL as to 205 Clerk's Judgment (<i>Amended Final Judgment</i>) by Defendant Garfield County, Board of County Commissioners (Filing fee \$ 455, Receipt Number 1082-3589671) (Steffey, Kathryn) (Entered: 10/23/2013)
10/24/2013	208	LETTER Transmitting Notice of Appeal to all counsel advising of the transmittal of the 207 Notice of Appeal filed by Garfield County, Board of County Commissioners to the U.S. Court of Appeals. (Retained Counsel, Fee paid,) (Attachments: # 1 Docket Sheet, # 2 Preliminary Record)(dbrow,) (Entered: 10/24/2013)
10/24/2013	209	USCA Case Number 13-1441 for 207 Notice of Appeal filed by Garfield County, Board of County Commissioners. (dbrow,) (Entered: 10/24/2013)
10/25/2013	210	LETTER TO USCA and all counsel certifying the record is complete as to 207 Notice of Appeal filed by Garfield County, Board of County Commissioners. A transcript order form was filed stating that the necessary transcript is already on file. (Appeal No. 13-1441) Text Only Entry (dbrow,) (Entered: 10/25/2013)
02/21/2014	211	ORDER of USCA as to 207 Notice of Appeal filed by Garfield County, Board of County Commissioners. Parties to voluntarily dismiss the captioned appeal. (USCA Case No. 13-1441) (dbrow,) (Entered: 02/24/2014)
02/21/2014	212	MANDATE of USCA as to 207 Notice of Appeal filed by Garfield County, Board of County Commissioners : (USCA Case No. 13-1441) (dbrow,) (Entered: 02/24/2014)

03/04/2014	213	STIPULATION of Dismissal of Case <i>With Prejudice</i> by Defendant Garfield County, Board of County Commissioners. (Williams, Tari) (Entered: 03/04/2014)
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